

23STCV03981 23STCV03981

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Case Number: 23STCV03981 Hearing Date: July 1, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

513

dALILA ALCANTARA,

Plaintiff,

vs.

COUNTY OF LOS ANGELES

;

Defendant.

Case

No.:

23STCV03981

Hearing

Date:

July

1, 2026

Time:

10:00 a.m.

[Tentative]

Order RE:

motion for summary judgment or, in the
alternative, summary adjudication

MOVING PARTY: Defendant County of Los Angeles

RESPONDING PARTY: Plaintiff

Dalila Alcantara

Defendant's Motion for Summary Judgment or,
in the Alternative, Summary Adjudication

The court considered the moving, opposition, and reply papers filed in
connection with this motion.

BACKGROUND

This is an action for alleged whistleblower retaliation under Labor
Code section 1102.5. Plaintiff Dalila
Alcantara ("Plaintiff") was hired by the Los Angeles County Probation
Department (the "Department") in 1999 as an Investigator Aide. (Plaintiff's Separate Statement of Additional
Material Fact ("AMF") No. 1; Alcantara Decl. ¶¶ 2-6.) Plaintiff was steadily promoted over the
course of the next two decades. As
relevant to this motion, Plaintiff was promoted to Bureau Chief in August 2018
and then to Deputy Director of the Department in December 2019. (Alcantara Decl. ¶ 3.) As Deputy Director, which is an
at-will
position, Plaintiff was responsible for overseeing more than 3,000 peace
officers in the Department. (Ibid.;
Defendant's Separate Statement of Undisputed Material Facts ("UMF") No. 5.)
Plaintiff maintained an excellent
employment record and received a rating of "Highly Effective" on each of her
final annual Executive and Managerial Assessments of Performance from 2015

through 2019. (Id. ¶ 4, Exh. 9; Defendant's Reply to Plaintiff's Separate Statement of Additional Material Facts ("Reply to AMF") No. 5.)

In February 2021, the Board of State and Community Corrections ("BSCC") found both Los Angeles County juvenile halls, Barry J. Nidorf and Central Juvenile Hall, were out of compliance with approximately 80 items identified during the BSCC inspections. (Alcantara Decl. ¶¶ 9-10; Reply to AMF Nos. 12-13.)

The period of noncompliance covered the years 2018 through 2020, when Plaintiff was not a Deputy Director. (Reply to AMF No. 14.) According to Plaintiff, "[t]he lack of BSCC compliance was primarily driven by outdated policies and procedures that did not reflect the massive BSCC regulation revisions that took place in 2019 and by chronic understaffing, particularly of supervisors." (Alcantara Decl. ¶ 9.) BSCC required the Department to either remediate violations of the BSCC's regulations or, after receiving a 60-day notice, remove the young people from the facilities altogether. (Reply to AMF No. 12.)

Also in February 2021, Adolfo Gonzales became Chief of the Probation Department. Shortly after his arrival, Plaintiff met with Chief Gonzales to raise concerns about what she believed to be the County's failures to comply with regulations affecting juvenile hall facilities. (Reply to AMF No. 18; Alcantara Decl. ¶ 12.) Plaintiff advised Chief Gonzales "that the Probation Department, more specifically, the juvenile halls needed more correctional officer supervisors to supervise juveniles in the juvenile halls." (Gonzales Decl. ¶ 12.)

By July 2021, the Department had addressed 73 of the 80 outstanding issues, leaving 7 violations that related to staffing shortages. (Reply to AMF Nos. 20-21; Alcantara Decl. ¶ 14.) On August 19, 2021, BSCC issued a letter identifying the 7 remaining areas of noncompliance. (Ibid.)

On October 2021, Chief Executive Officer Fesia Davenport scheduled a meeting of County management, including Chief Gonzales, County Counsel, and Plaintiff, to address outstanding BSCC compliance issues. (AMF No. 35; Alcantara Decl. ¶ 21.)^[1] On October 6, 2021, in advance of the meeting, Plaintiff emailed Adam Bettino, Karen Fletcher, and Chief Gonzales specific suggestions to address staffing shortages. Plaintiff did not receive a response to the email. (Reply to AMF No. 36; Alcantara Decl. ¶ 22 and Exh. 15.) During the October 6 meeting, Plaintiff stated, in the presence of Chief Gonzales, that the County was not in compliance with the County's corrective action plan due to the

staffing shortages, including the loss of multiple supervisors at juvenile hall facilities. (Alcantara Decl. ¶ 23; Reply to AMF No. 37.) According to Plaintiff, she “specifically pointed to Chief Gonzales as the cause of these failures” and she raised concerns about a hiring freeze contributing to the staffing shortages. (Alcantara Decl. ¶ 23.)

On October 7, 2021, the day following the meeting, Chief Gonzales met with Plaintiff and informed her that, after speaking with Fesia Davenport, Plaintiff was no longer to give presentations to the Probation Commission, the Board of Supervisors, BSCC, or any other body regarding BSCC-related issues. Instead, Plaintiff was directed to report to Karen Fletcher, Chief Deputy, who would communicate with those entities. (Reply to AMF No. 42; Alcantara Decl. ¶ 42, Exh. 16.) Plaintiff declares that, in mid-October 2021, she complained to County management, including Karen Fletcher, that Chief Gonzales and the union were harassing her and directing her not to disclose required information to regulators. (Alcantara Decl. ¶ 26.)

Around this time, Chief Gonzales began to exclude Plaintiff from certain meetings. As an example, he directed Plaintiff not to attend a facility tour with Assemblymember Reggie Jones, who was expected to inquire about BSCC violations. (Alcantara Decl. ¶¶ 27-29; Reply to AMF Nos. 46-52.) Chief Gonzalez admits that “[o]n one or two occasions, I had to advise Plaintiff that she could not attend a meeting because she was not dressed professionally.” (Gonzales Decl. ¶ 15.)

On November 30, 2021, Chief Gonzales reassigned Plaintiff as Deputy Director to Bureau Chief. At the time of her transfer, Plaintiff was not given a “Y-rating”[2] which would have maintained her current rate of pay. Therefore, this reassignment included a reduction in pay and category, which, if not successfully grieved, would negatively affect Plaintiff’s future earning potential. (Alcantara Decl. ¶¶ 30-34; Reply to AMF No. 52.) Plaintiff “was escorted from [her] office and required to vacate it immediately in front of [her] subordinates.” (Alcantara Decl. ¶ 33.)

Also on November 30, 2021, Chief Gonzales assigned Plaintiff a managerial appraisal (“MAPP”) score of three (3), while all other Deputy Directors received a score of five (5). This lower MAPP score could impact Plaintiff’s eligibility for a higher pay increase. (Alcantara Decl. ¶¶

35-36.)

On December 10, 2021, Plaintiff filed a grievance challenging the MAPP score she received. (Alcantara Decl. ¶ 42.) On April 25, 2022, Plaintiff filed a grievance requesting that Plaintiff be “Y-rated” to the compensation she was earning as Deputy Director. (Id. ¶ 45, Exh. 20.) Meetings with lower-level supervisors on May 10 and June 8, 2022 did not resolve the grievances. (Id. ¶¶ 49-50.) On June 30, 2022, in response to the first grievance, Chief Gonzalez changed Plaintiff’s MAPP score from a three (3) to a four (4). (Id. ¶ 51, Exh. 23.) On July 14, 2022, Chief Gonzales denied Plaintiff’s grievance requesting a Y-rating. (Id. ¶ 52, Exh. 24.)

In September 2022, Plaintiff applied for her former Deputy Director position but was not selected. (Reply to AMF No. 82.) On October 13, 2022, Plaintiff filed a claim for damages with the County alleging whistleblower retaliation. (Defendant’s Appendix Exh. A.) On February 23, 2023, Plaintiff filed a complaint against Defendant for retaliation in violation of Labor Code section 1102.5. On July 24, 2025, Plaintiff filed a first amended complaint for the same cause of action.

Defendant now moves for summary judgment, or in the alternative, summary adjudication on the complaint. Defendant moves for summary adjudication of the following two issues:

ISSUE ONE: Plaintiff’s cause of action for violation of Labor Code Section 1102.5 must be adjudicated against Plaintiff because Plaintiff cannot make a prima facie showing of retaliation, Defendant had legitimate business reasons for removing Plaintiff from her at-will position of Deputy Director, and Plaintiff has no evidence of pretext.

ISSUE TWO: Plaintiff’s cause of action for violation of Labor Code Section 1102.5 must be adjudicated against Plaintiff because Plaintiff failed to timely file a Government Claims Act within six months of her demotion.

(Notice

of Motion.) Plaintiff opposes the motion.

EVIDENTIARY ISSUES

The court rules on Plaintiff's evidentiary objections, filed May 1, 2026, as follows:

Objections

Nos. 1-2 are sustained.

Objections

Nos. 3-8 are overruled.

The court rules on Defendant's evidentiary objections, filed May 8, 2026, as follows:

Objections Nos. 1-8, 10-15, 17-30, and 32-43 are overruled. Although the court has elected to rule on these objections, the court also states that these evidentiary objections are not material to the court's disposition of the motion. (Code Civ. Proc. § 437c, subd. (q).)

Objections

Nos. 9, 16, and 31 are sustained.

LEGAL STANDARD

The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) "Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant or cross-defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c(p)(2).) “Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c(p)(2).) “If the plaintiff cannot do so, summary judgment should be granted.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.) “When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Id. at 467; Code Civ. Proc., § 437c(c).)

DISCUSSION

1. The Government

Claims Act

Defendant contends that “Plaintiff’s Labor Code section 1102.5 claim fails as a matter of law because she did not timely file a Government Claim.” (Motion for Summary Judgment (“Mot.”), p. 11.) Plaintiff contends that, under the continuing violations doctrine, the Department’s retaliation “did not reach a level of permanence until at least July 14, 2022 – when Plaintiff’s Y-rating grievance was denied” and that she timely filed a government claim within six months of that date. (Oppo., pp. 13-14.)

Claims for personal injury against a public entity must be presented not later than six months after the accrual of the cause of action. (Gov. Code § 911.2.) “The failure to timely present a claim to the public entity bars the claimant from filing a lawsuit against that public

entity.” (California Restaurant

Management Systems v. City of San Diego (2011) 195 Cal.App.4th 1581, 1591.) “[A] cause of action accrues when [it] is complete with all of its elements—those elements being wrongdoing, harm, and causation.” (Willis v. City of

Carlsbad (2020) 48 Cal.App.5th 1104, 1124, citations and quotes omitted.) “[T]he infliction of appreciable and actual harm, however uncertain in amount, will commence the statutory period.” (Engstrom v. Kallins (1996) 49 Cal. App. 4th 773, 783.)

The continuing violations doctrine is an exception to these rules. “The continuing violation doctrine aggregates a series of wrongs or injuries for purposes of the statute of limitations, treating the limitations period as accruing for all of them upon commission or sufferance of the last of them. Consequently, the continuing violation doctrine allows liability for unlawful ... conduct occurring outside the statute of limitations if it is sufficiently connected to unlawful conduct within the limitations period.” (Willis, supra, 48 Cal.App.5th at 1124, citations and quotes omitted.) In deciding whether the continuing violations doctrine applies, courts consider whether “the employer’s actions were (1) sufficiently similar in kind – recognizing ... that similar kinds of unlawful employer conduct, such as acts of harassment or failures to reasonably accommodate disability, may take a number of different forms; (2) have occurred with reasonable frequency; (3) and have not acquired a degree of permanence.” (Yanowitz v. L’Oreal USA, Inc. (2005) 36 Cal.4th 1028, 1059, citations and quotes omitted.) “‘Permanence’ in this context means that an employer’s actions make clear to a reasonable employee that any further efforts to end the alleged unlawful conduct will be futile, or the employer mak[es] clear to the employee in a definitive manner that the employee’s requests have been rejected.” (Willis, supra, 48 Cal.App.5th at 1124, 1127.) “[I]f the [cause of action] were to accrue when the first incident occurred, the pressure to file a lawsuit before the statute expired could easily inhibit meaningful efforts at conciliation.” (Cucuzza v. City of Santa Clara (2002) 104 Cal.App.4th 1031, 1042.)

To establish a claim for retaliation in violation of Labor Code section 1102.5, “the plaintiff must show (1) he or she engaged in a protected activity; (2) the employer subjected the employee to an adverse employment action; and (3) a causal link between the protected activity and the employer’s action.” (Akers v. County of San Diego (2002) 95 Cal.App.4th 1441, 1453.)

Here, Plaintiff raised concerns to Chief Gonzales starting

in February 2021 about the County's alleged failures to comply with BSCC regulations affecting juvenile hall facilities because of staffing shortages. (Reply to AMF No. 18; Alcantara Decl. ¶ 12; Gonzales Decl. ¶ 12.) Then, "Plaintiff engaged in a protected activity in early October 2021" when she raised similar concerns at the October 6, 2021, meeting, and in an email prior to that meeting. (Mot. 12:8; Alcantara Decl. ¶¶ 22-23; Reply to AMF Nos. 36-37.)

Taking the evidence in the light most favorable to Plaintiff, the court finds that Plaintiff has shown there are triable issues of material fact as to whether the County "began a campaign of retaliation" that lasted until at least July 14, 2022, in response to Plaintiff's protected activities. (See Yanowitz, supra, 36 Cal.4th at 1059.) On October 7, 2021, the day following the October 6 meeting, Chief Gonzales informed Plaintiff that she would no longer give presentations to the Probation Commission, the Board of Supervisors, BSCC, or any other body regarding BSCC-related issues. (Reply to AMF No. 42; Alcantara Decl. ¶¶ 26, 42, Exh. 16.) Around this time, Chief Gonzales began to exclude Plaintiff from important meetings, including a facility tour with Assemblymember Reggie Jones. (Alcantara Decl. ¶¶ 27-29; Reply to AMF Nos. 46-52; Gonzales Decl. ¶ 15.) On November 30, 2021, Chief Gonzales reassigned Plaintiff as Deputy Director to Bureau Chief; denied her a "Y-rating"; and assigned Plaintiff a MAPP score of three (3). (Alcantara Decl. ¶¶ 30-36.) After Plaintiff filed grievances, Chief Gonzales changed Plaintiff's MAPP score from a three (3) to a four (4), showing the possibility of conciliation. (Id. ¶ 51, Exh. 23.) However, on July 14, 2022, Chief Gonzales denied Plaintiff's grievance requesting a Y-rating. (Id. ¶ 52, Exh. 24.) The effect of this grievance decision is that Plaintiff's loss of pay from the reassignment became permanent. Finally, in September 2022, Plaintiff applied for her former Deputy Director position but was not selected. (Reply to AMF No. 82.)

A reasonable trier of fact could conclude that these actions were similar in kind and occurred with sufficient frequency to constitute a continuous and temporally related course of conduct. Further, a reasonable trier of fact could conclude that the County's retaliatory actions did not reach a degree of permanence until July 14, 2022, when Chief Gonzales denied Plaintiff's grievance requesting a Y-rating. Alternatively, a reasonable trier of fact could conclude that permanence occurred in September 2022 when Plaintiff was not selected to the Deputy Director position. Plaintiff filed her claim for damages with the County on October 13, 2022, within six months of these dates.

Therefore, the court finds that Plaintiff has shown that triable issues of material fact exist as to Defendant's defense to the complaint based on the Government Claims Act.

Defendant's arguments to the contrary are not persuasive. (See Mot. 13-15; Reply 4-7.) Defendant argues, without analysis, that there

is no "evidence that the County continued to subject her to sufficiently similar adverse employment actions after she was removed from her Deputy Director position." (Mot.

13:13-15.) The court disagrees. A reasonable trier of fact could conclude that the actions, summarized above, are similar in that they reduced Plaintiff's responsibilities, her visibility in the workplace, her salary, and her potential for salary increases. Defendant argues that the County's decision not to select Plaintiff for the open Deputy Director position in September 2022 was an "isolated employment decision" that was not even made by Chief Gonzales.

(Reply 6-7, citing *Morgan v. Regents of University of Cal.* (2000)

88 Cal.App.4th 52.) However, as

Defendant acknowledges, Plaintiff applied for the same position that she already performed, Deputy Director.

(Reply 7.) Therefore, the trier

of fact should decide whether the County's September 2022 decision not to select Plaintiff for the open Deputy Director position was part of the alleged continuing retaliation.

Defendant contends that "the fact

that Plaintiff did not file a grievance against Gonzales's decision to remove her as Deputy Director evidences that Plaintiff appreciated the permanence of his decision." (Reply 6.) Relatedly, Defendant contends that Plaintiff's grievances of the MAPP score and denial of a Y-rating "relate to Plaintiff's uncertainty of how much in damages she would seek to recover," not the permanence of Defendant's actions.

(Reply 7.) However, as noted,

Plaintiff's loss of pay from the reassignment only became permanent when Chief Gonzales denied the Y-Rating grievance.

Further, since Chief Gonzales granted the grievance related to

Plaintiff's MAPP score on June 30, 2022, there is evidence of conciliation during this period. Plaintiff also had the

opportunity to apply for the Deputy Director position in September 2022. In these circumstances, the trier of fact should decide whether Plaintiff's decision not to grieve the reassignment showed

permanence in Defendant's actions.

Plaintiff also alleges that her

Bureau Chief position was eliminated in June 2024 because of the protected activities she engaged in during October of 2021. (FAC ¶ 47.) Defendant does not dispute that Plaintiff timely filed a government claim within six months of that alleged retaliatory action. (FAC ¶ 11.) Defendant argues that “a gap of three years from Plaintiff’s alleged protected activity and the adverse employment action precludes Plaintiff from raising a plausible claim for relief as a matter of law.” (Mot., p. 14, citing *Le Mere v. Los Angeles Unified School Dist.* (2019) 35 Cal.App.5th 237, 243–244.) Defendant ignores that Plaintiff filed the complaint in this action, which could be construed as protected activity, on February 23, 2023. Thus, there are triable issues of material fact as to whether there was a sufficient connection between the elimination of Plaintiff’s position in 2024, Defendant’s alleged retaliatory actions in 2021 and 2022, and Plaintiff’s protected activities. Regardless, the court need not decide this issue because there are triable issues of material fact with respect to application of the continuing violations doctrine in 2021 and 2022 and the timeliness of Plaintiff’s first government claim.

Finally, Defendant argues that Plaintiff’s

grievances did not equitably toll the government claim requirements. (Mot., p. 12.) “The doctrine of equitable tolling cannot be invoked to suspend section 911.2’s six-month deadline for filing a prerequisite government claim.” (Willis, *supra*, 48 Cal.App.5th at 1121.) However, the grievances were decided by Chief Gonzales, a supervisor who was directly involved in the alleged retaliation. In those circumstances, Plaintiff is not relying on equitable tolling, but on the continuing violations doctrine, which “affects a cause of action’s accrual” and the claims presentation requirements. (*Id.* at 1124.)

For

the reasons set forth above, the court finds that Defendant has not met its burden of showing that one or more elements of Plaintiff’s first cause of action for retaliation in violation of Labor Code section 1102.5 cannot be established or that there is a complete defense to Plaintiff’s section 1102.5 cause of action “because Plaintiff failed to timely file a Government Claims Act within six months of her demotion.” (Notice of Motion, Issue Two.) Even if Defendant had met its burden, the court finds that Plaintiff has met her burden to show that triable issues of material

fact exist as to the continuing violations doctrine. (Code Civ. Proc., § 437c(p)(2).) The court therefore denies Defendant's motion

for summary adjudication of Issue Two.

2. Labor

Code Section 1102.5

Labor Code section 1102.5(b) provides, in relevant part: "An employer, or any person acting on behalf of the employer, shall not retaliate against an employee for disclosing information, or because the employer believes that the employee disclosed or may disclose information, to a government or law enforcement agency, to a person with authority over the employee or another employee who has the authority to investigate, discover, or correct the violation or noncompliance, or for providing information to, or testifying before, any public body conducting an investigation, hearing, or inquiry, if the employee has reasonable cause to believe that the information discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation" [3] (Emphasis added.)

As noted, the plaintiff in a section 1102.5 action "must show (1) he or she engaged in a protected activity; (2) the employer subjected the employee to an adverse employment action; and (3) a causal link between the protected activity and the employer's action."

(Akers v. County of San Diego (2002) 95 Cal.App.4th 1441, 1453.)

Here, contrary to Defendant's assertions (Mot., p. 19), Plaintiff has presented evidence she engaged in protected activities when she raised concerns at the October 6, 2021 meeting, and in an email prior to that meeting about BSCC violations due to staffing shortages. (Mot., p. 12:8; Alcantara Decl. ¶¶ 22-23; Reply to AMF Nos. 36-37.) "An employee engages in activity protected by the statute when the employee discloses reasonably based suspicions of illegal activity." (Ross v. County of Riverside (2019) 36 Cal.App.5th 580, 592-593.) The court finds that Plaintiff has shown that there is a triable issue of material fact as to whether Plaintiff's disclosures to County leadership about alleged noncompliance with BSCC regulations were protected activities. Defendant does not dispute that there are triable issues with respect to the second element, i.e. whether Plaintiff's reassignment to Bureau Chief, loss of duties, and loss of pay were adverse employment actions.

Defendant challenges the third element of Plaintiff's claim and argues that there was not a causal link between the protected activity and its employment actions. Recently, the California Supreme Court clarified the framework for evaluation of this element of Labor Code Section 1102.5 claims in a summary judgment motion.

Section 1102.6 provides the governing framework for the presentation and evaluation of whistleblower retaliation claims brought under section 1102.5. First, it places the burden on the plaintiff to establish, by a preponderance of the evidence, that retaliation for an employee's protected activities was a contributing factor in a contested employment action. The plaintiff need not satisfy *McDonnell Douglas* in order to discharge this burden. Once the plaintiff has made the required showing, the burden shifts to the employer to demonstrate, by clear and convincing evidence, that it would have taken the action in question for legitimate, independent reasons even had the plaintiff not engaged in protected activity.

(Lawson
v. PPG Architectural Finishes, Inc. (2022) 12 Cal.5th 703, 718.)[4]

Defendant contends that it is entitled to summary judgment because Plaintiff cannot establish, by a preponderance of the evidence, that any retaliation was a contributing factor in the alleged adverse employment actions. (Mot., pp. 10, 15-19.) The court disagrees. Pursuant to section 1102.6, "plaintiffs may satisfy their burden of proving unlawful retaliation even when other, legitimate factors also contributed to the adverse action." (Lawson, supra, 12 Cal.5th at p. 713.) "The causal link may be established by an inference derived from circumstantial evidence, such as the employer's knowledge that the [employee] engaged in protected activities and the proximity in time between the protected action and allegedly retaliatory employment decision." (Morgan v. Regents of University of Cal. (2000) 88 Cal.App.4th 52, 69-70.)

Here, Plaintiff has shown, by a preponderance of the evidence, that retaliation for her protected activities was a contributing factor in a contested employment action. On October 6, 2021, Plaintiff expressly informed County leadership that the County remained out of compliance with BSCC mandates, and she attributed those failures to leadership decisions and ongoing staff shortages. (Alcantara Decl. ¶¶ 21-23; Reply to AMF

Nos. 35-37.) According to Plaintiff, she “specifically pointed to Chief Gonzales as the cause of these failures.” (Alcantara Decl. ¶ 23.) The very next day, October 7, 2021, Chief Gonzales stripped Plaintiff of core job responsibilities, including prohibiting her from presenting to oversight bodies. (Reply to AMF No. 42; Alcantara Decl. ¶ 42, Exh. 16.) Moreover, within weeks, Plaintiff was excluded from critical meetings, and by November 30, 2021, she was abruptly reassigned to a lesser-paying position. (Alcantara Decl. ¶¶ 30-34; Reply to AMF No. 52.) Plaintiff “was escorted from [her] office and required to vacate it immediately in front of [her] subordinates.” (Alcantara Decl. ¶ 33.) Plaintiff was later denied a Y-rating regarding her transfer, rendering her loss of salary permanent. (AMF 56.) Since then, Plaintiff has been denied every promotion she has applied for and has been transferred out of the Department altogether. (AMF 90.) This evidence is more than sufficient to satisfy Plaintiff’s initial burden under Lawson and section 1102.6.

Therefore, the burden shifted to Defendant to demonstrate, by clear and convincing evidence, that it would have taken the actions in question for legitimate, independent reasons even had Plaintiff not engaged in protected activity. (Lawson, *supra*, 12 Cal.5th at p. 718.) “Where clear and convincing proof is required, the proponent must convince the jury or judge, as the case may be, that it is highly probable that the facts which he asserts are true.” (Conservatorship of O.B. (2020) 9 Cal.5th 989, 998-999.)

Defendant argues that “the evidence establishes that Gonzales removed Plaintiff from her position because she was a poor leader, had poor and unprofessional communication skills and just was not a right fit for his vision of how the Probation Department should be ran.” (Mot., p. 18; Gonzales Decl. ¶¶ 7-25.) Defendant argues that it “produced sufficient evidence ... that Adolfo Gonzales’s decisions were supported fully by legitimate business reasons, regardless of how incorrect Plaintiff believes them to be, and the decisions would have been made regardless of whether Plaintiff engaged in her protected activities or not.” (Reply 10.) The court has carefully reviewed Defendant’s supporting evidence, including the declaration of Adolfo Gonzales. Although this evidence is relevant, it does not establish by clear and convincing evidence that

Defendant would have taken the actions in question for legitimate, independent reasons even had Plaintiff not engaged in protected activity.

For the reasons set forth above, the court finds that Defendant has not met its burden of showing that the first cause of action for retaliation in violation of Labor Code section 1102.5 has not merit because Defendant has not shown that one or more elements of Plaintiff's cause of action cannot be established. (Code Civ. Proc., § 437c, subd. (p)(2).) Even if Defendant had met its burden, the court finds that Plaintiff has met her burden to show that a triable issue of material fact exists as to Plaintiff's first cause of action for retaliation in violation of Labor Code section 1102.5. The court therefore denies Defendant's motion for summary adjudication of Issue One and motion for summary judgment.

ORDER

The court denies Defendant County of Los Angeles's motion for summary judgment.

The court denies Defendant County of Los Angeles's motion for summary adjudication of Issues One and Two.

The court orders plaintiff Dalila Alcantara to give notice of this ruling.

IT IS SO ORDERED.

DATED: July 1, 2026

Robert
B. Broadbelt III

Judge
of the Superior Court

[1] There is some conflict in Plaintiff's own evidence as to whether BSCC representatives attended this meeting. (See Alcantara Decl. ¶¶ 21-23 and Defendant's Appendix Exh. C at 174.) This conflict

is not material to the court's disposition of the motion because, even if BSCC representatives did not attend the meeting, the evidence shows that Plaintiff made certain statements at and before the meeting that could be construed, by a reasonable trier of fact, as protected activity under Labor Code section 1102.5.

[2] "[A] Y-rating allows an employee who is moved into a lower-paying classification to retain their salary when the transfer is not based on performance or discipline."

(Reply to AMF No. 55.)

[3] Based the emphasized language, section 1102.5 applies even if Plaintiff made the disclosures of noncompliance only to Chief Gonzales and other County leadership, not to BSCC regulators. Regardless, it appears undisputed that Plaintiff did discuss noncompliance issues with BSCC regulators. (Gonzales Decl. ¶¶ 7-25; Alcantara Decl. ¶¶ 24-31.)

[4] Section 1102.6 provides: "In a civil action or administrative proceeding brought pursuant to Section 1102.5, once it has been demonstrated by a preponderance of the evidence that an activity proscribed by Section 1102.5 was a contributing factor in the alleged prohibited action against the employee, the employer shall have the burden of proof to demonstrate by clear and convincing evidence that the alleged action would have occurred for legitimate, independent reasons even if the employee had not engaged in activities protected by Section 1102.5."